



POLICE DEPARTMENT

May 13, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202207963 (Incident Date: November 18, 2022) regarding Sergeant Michael Venditti, Tax No. 952318 (DADS No. 2024-30295)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202207963, pertaining to Sergeant Michael Venditti. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Sergeant Venditti would be detrimental to the Police Department's disciplinary process.

In this case, Sergeant Venditti and his team conducted a car stop of a vehicle with excessively tinted windows. The driver of the vehicle identified himself as a law enforcement officer and became irate and noncompliant when an officer took his credentials to the rear of the vehicle to conduct a further investigation into the driver's identity. The driver continued to be loud and noncompliant and Sergeant Venditti ordered him out of the vehicle. The driver persisted with his confrontational and aggressive manner, and Sergeant Venditti told him that he was "acting crazy" and removed the driver's firearm from his waistband. Officers arrested the driver for criminal possession of a firearm after the officers failed to establish the driver's right to carry a firearm without a permit. The driver was subsequently released on a voided arrest at the stationhouse after Sergeant Venditti verified his status as a law enforcement officer and his authority to carry a firearm without a permit.

The CCRB substantiated allegations that Sergeant Venditti's use of the term "acting crazy" was discourteous and offensive. The Police Commissioner disagrees and finds that Sergeant Venditti's actions were within guidelines and that his words were meant to deescalate a volatile

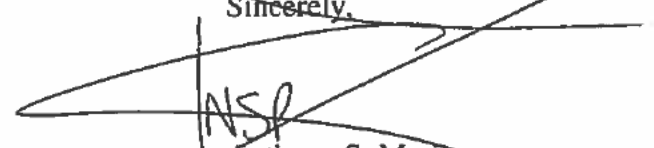
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situation. A law enforcement officer carrying a firearm off-duty must exercise the utmost deference towards on-duty uniformed officers when confronted. The motorist in this case was anything but deferential. Sergeant Venditti's use of the term "acting crazy" was not meant to offend, demean, or belittle, but rather to alert the motorist, an off-duty federal law enforcement officer, that his conduct was alarming them. Indeed, the motorist did not allege that Sergeant Venditti or the other officers on scene were discourteous or offensive.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action against Sergeant Venditti for the discourtesy and offensive language allegations.

Sincerely,

A large, stylized handwritten signature in black ink, appearing to read "ASMP", is written over the word "Sincerely," and extends across the typed name and title.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

May 14, 2024

The Honorable Edward Caban
Police Commissioner
New York City Police
Department One Police Plaza
New York, New York 10038

RE: CCRB Case No. 202207963
Sergeant Michael Venditti,
(DADS No. 2024-30295)

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony Marino, dated May 13, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to retain jurisdiction over this matter against Sergeant Michael Venditti. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding (hereinafter referred to as the “MOU”) between CCRB and the New York City Police Department. I am responding to Deputy Chief Marino’s notification.

Regarding Specifications One (1) and two (2), Deputy Chief Marino states that “The Police Commissioner finds that Sergeant Venditti’s actions were within guidelines and that his words were meant to deescalate a volatile situation.” CCRB disagrees with this determination.

Sgt. Venditti called § 87(2)(b) “crazy” multiple times because § 87(2)(b) was stating he was an officer, but still contentious with the officers. Sgt. Venditti explained that he never thought § 87(2)(b) was medically insane. However, as per Patrol Guide 200-02, Sgt. Venditti did not treat § 87(2)(b) with courtesy and respect by stating he was “acting crazy” when § 87(2)(b) was upset with the situation.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, and in the interest of justice, it is respectfully requested that you permit CCRB to pursue Charges and Specifications against Sergeant Venditti in this matter.

Respectfully submitted,

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

May 15, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

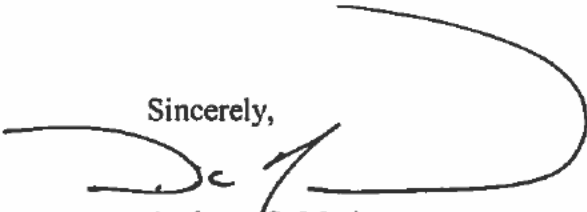
Re: CCRB Case No. 202207963 (Incident Date: November 18, 2022) regarding Sergeant Michael Venditti, Tax No. 952318 (DADS No. 2024-30295)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated May 14, 2024, concerning the Civilian Complaint Review Board (“CCRB”) case involving Sergeant Michael Venditti. Nevertheless, he maintains that it would be detrimental to the Police Department’s disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Sergeant Venditti for the reasons expressed in my May 13, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs that no disciplinary action be imposed for the substantiated allegations.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner’s Office

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